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Submitter Information

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[REDACTED]

General Comment

See attached file(s)

Attachments

AI carve out Note

From:

Michael A. Stackpole

New York Times Bestselling author of over 70 novels, award winning novelist, graphic novelist, game designer, computer game designer, podcaster, editor and screenwriter

Re: National Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

I am a self-employed American entrepreneur in the entertainment industry. I have worked hard for years to develop the skills and knowledge to build my business, and have been lucky enough to make a decent living—and planned to continue doing so into the future.

This plan seemed good until recently.

The AI systems made by Big Tech companies like OpenAI (Microsoft) and Google threaten to destroy thousands of American small businesses like mine with their recent demand to create special carve outs in copyright law.

AI systems can only be produced by first training on work made by people. My unique work, and the work of hundreds of thousands of other everyday American creators was taken and fed into these AI systems without our consent or any compensation. They ingest our work, reassemble it, and then sell it back to our clients – directly competing with us and cutting us out of the marketplace.

Now these Big Tech companies are asking this administration to create exceptions and loopholes to make this practice of stealing American creators' copyrighted work legal precedent. They are suggesting that if a machine ingests and reproduces copyrighted work, it is somehow suddenly "fair use."

By this turn of logic, the fact that a thief steals my wallet means that my wallet is instantly transformed into "community property" owned by everybody.

They seem to believe that anything and everything on the internet – regardless of who owns it – should be theirs for the taking. They claim

that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation.

Instead, it will have the opposite effect. The purpose of American copyright law is to protect the incentive to create and innovate.

If we the American people do not own our creations, and everything we put online will be stolen by Big Tech giants, what will be the incentive to create? If everyday Americans create a new innovative piece of computer code, a new visual design, a new, blockbuster novel; or a new piece of music only to have it immediately stolen by Google and Microsoft, why bother creating it in the first place? How will we possibly make a living doing these things?

And, as a writer, I have to say, the sheer gall and irony of people advocating for their opportunity to make money in a “free market” environment while stealing from others is incredibly rich. Which is what exactly they mean to be by depriving any of the rest of us from attaining that goal.

Thing about the above paragraph is that my point is made through a pun—the dual meanings of *rich* in our tongue. And no matter how well they fine tune their LLMs, AI will *never* be able to make a point that way. Why? Because the effect of that pun hinges on the reader’s *emotional* reaction to that pun. These machines can’t do puns because they have no emotions.

And granting them the right to use our work without payment, through these carveouts means that they’re cutting off the only source of fuel they have. Before long the only thing AI will mine is drivel generated by AI. Their model is unsustainable regardless of the carveouts, but granting those carveouts hurts writers, artists, programmers, musicians and other human beings. The cost of giving in to their demand is the slow death of human culture and art.

Want to protect American innovation, American culture and our soul? Protect American creators. **Do not create new copyright exemptions that allow Big Tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency.**

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

- First, the government should ensure that creators and everyday Americans give effective **consent**, so that we can decide when and where our work is used by AI systems.
- Second, the AI Action Plan should encourage a robust **licensing** marketplace, so that the incentive to create for small businesses is preserved. Our work has immense economic value, so the value generated by that work should accrue to the original creators, not just Big Tech.
- Finally, the AI Action Plan should require **transparency** from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated.

I am not anti-technology nor anti-AI. I am consistently impressed by the capabilities of these AI systems, and find them incredibly useful for many things. But we should not sacrifice the hard work of hundreds of thousands of Americans and give it away to Big Tech by rewriting copyright law.

Thank you for the opportunity to comment on these important issues.

Sincerely,

Michael A. Stackpole